

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103 Joint Appendix Cover, Index, and Certification Filed March 23, 2026

This joint appendix contains the record materials designated by the City of Norvale and the Piedmont Booksellers Guild for review of the January 23, 2026 preliminary injunction. The district clerk certified completion of the electronic record on February 9. Counsel have organized the twenty-four district-record documents in their certified sequence and assigned continuous appendix pagination. Nothing in this cover or index changes a document's docket identity, filing date, authorship, or evidentiary status.

The appeal is interlocutory under 28 U.S.C. § 1292(a)(1). The appendix therefore focuses on the materials before the district court when it granted preliminary relief and denied the City's stay request. The underlying complaint remains unresolved. Later appellate motions, briefs, orders, and argument materials are maintained in the appellate record but do not become part of the certified district record by appearing in this filing.

The pleadings and municipal-history portion comprises JA1–JA33. JA1–JA8 is the Guild's verified complaint. JA9–JA14 is the City's answer. JA15–JA22 contains Ordinance N-2025-18, Form PS-1, and the fee schedule. JA23–JA29 contains the council staff report, minutes, and legislative history. JA30–JA33 is the parks department's pilot permit and enforcement history current through December 15, 2025.

Those documents establish the challenged system and the parties' competing characterizations. The ordinance requires a filing forty-five days before each covered recurring event, lists paid speakers by name, topic, and time, charges \$240 per event plus \$45 per paid speaker, permits documented crowd, traffic, and resource conditions, and requires written reasons. The historical materials identify operational purposes, neutral early decisions, limited cost data, and the absence of a contested pilot denial.

The index places those legislative materials before the declarations because they define the neutral text both sides analyze.

The declaration and site-evidence portion comprises JA34–JA64. JA34–JA38 is the declaration of Guild executive director Miriam Bellweather. JA39–JA43 is member bookseller Tessa Wren's declaration. JA44–JA48 is fair organizer Omar Finch's declaration. JA49–JA53 is the declaration of the City's parks and events director. JA54–JA57 is the police logistics declaration. JA58–JA64 contains site photographs described in text, maps, the 2026 recurring calendar, reservation excerpts, and dispatch abstracts.

The parties agree that the Guild has held free Cedar Commons fairs since 2019, generally with eighteen to twenty-eight sellers and four to seven compensated authors. They also agree that no violence is attributed to those fairs, two minor medical calls occurred, and routine congestion and loading issues required management. They dispute the predictive value of that history, the speaker trigger's fit, the significance of late program changes, and the burden of recurring fees.

The preliminary-injunction submissions occupy JA65–JA92. JA65–JA73 is the Guild's motion and supporting memorandum. JA74–JA82 is the City's opposition. JA83–JA87 is the Guild's reply. JA88–JA92 is the parties' stipulated facts and less-restrictive-alternatives chart. The stipulation identifies agreed facts separately from disputed propositions and preserves both sides' objections to the legal significance of proposed alternatives.

The January 19 hearing transcript occupies JA93–JA114. It records counsel's arguments, the district court's questions, witness testimony, admitted exhibits, and the parties' treatment of compensation, scheduling, fees, site planning, and amendment practice. The transcript contains no later ruling. The January 23 memorandum opinion and preliminary-injunction order follows at JA115–JA124 and supplies the findings and operative restraint under review.

No excerpted transcript passage has been rearranged, and the complete twenty-two-page proceeding is included so context remains available for every cited exchange and evidentiary ruling.

The district-stay sequence occupies JA125–JA143. JA125–JA130 is the City's January 26 motion to stay pending appeal. JA131–JA135 is the Guild's January 27 opposition. JA136–JA138 is the City's January 28 reply. JA139–JA143 is the January 28 order denying a stay. These materials demonstrate that the City sought relief first in the district court and preserve that court's reasons; their inclusion does not imply that the later appellate stay denial resolved the merits.

The initiation and certification sequence occupies JA144–JA149. JA144 is the City's January 29 notice of appeal. JA145–JA146 is the certified district docket as of January 30. JA147–JA149 is the February 9 certificate of record completion and index. No sealed item, unfiled advocacy paper, or later appellate document is inserted into those pages.

The certification also confirms that the underlying action remains open and that the notice invokes interlocutory rather than final-judgment review.

Counsel jointly certify that the appendix reproduces the designated district-record PDFs without substantive alteration; that the sequence and continuous labels correspond to this index; and that each referenced page can be opened and searched. Formatting necessary to combine documents and place stable page labels does not change the text. The certification does not concede the truth, relevance, admissibility, or legal significance of a disputed statement.

Counsel further certify that they conferred regarding contents and omitted unnecessary duplication. Citations in the briefs should use the continuous JA pagination rather than source-file page numbers. If a party discovers a material reproduction error, it shall notify opposing counsel and the Clerk promptly and seek correction by motion rather than substituting a new object outside the docket.

The parties have retained the source docket identifiers in the index so that any correction can be traced to the certified district entry. They have not redacted substantive text, inserted advocacy labels into the source pages, or treated the appendix certification as a stipulation to disputed facts.

The City of Norvale submits the appendix as appellant, and the Piedmont Booksellers Guild joins the certification as appellee. Both parties preserve all arguments concerning the standard of review, the four preliminary-injunction factors, First Amendment tailoring, fees, Rule 65, and relief. Joint submission of the record is not agreement on disposition.

Filed March 23, 2026. Counsel for both parties certify electronic service through the appellate filing system. The paper and electronic copies, if any, conform to the applicable technical and privacy requirements, and no personal identifier requiring redaction appears in the designated materials.